

EU: ChatGPT designation sets AI chatbot precedent

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ChatGPT designation extends platform regulation to AI chatbots

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Brussels’ decision to bring ChatGPT into scope of the Digital Services Act (DSA) means OpenAI will face greater scrutiny and regulatory obligations such as risk assessment and mitigation.

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Though the DSA was not drafted with AI in mind, Brussels’ classification of ChatGPT as a search engine creates a template for other chatbots once they cross 45 million active EU users.

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Despite White House opposition to EU tech rules, Brussels will very likely designate Microsoft Azure and Amazon Web Services (AWS) under the Digital Markets Act (DMA) this fall, as part of a broader push to bring AI into scope of the EU’s platform regulation toolkit.

The search engine label is imperfect but provides a template. Like the EU AI Act, the DSA—the bloc’s online platform rulebook—was not originally designed to deal with AI chatbots. EU lawyers debated at length whether to classify ChatGPT as a “Very Large Online Platform” (VLOP) like Facebook or Temu, or a “Very Large Online Search Engine” (VLOSE) like Google Search. The latter was more legally defensible, though officials have also described ChatGPT as a “hybrid service”.

In May, Anthropic said that Claude is “well below” 45 million active EU users, but will publish updates at least every six months. Chinese chatbots such as DeepSeek almost certainly do not meet the threshold.

OpenAI will face regulatory friction but not immediate fines. The company will be supervised directly from Brussels, not only from its legally established EU base of Dublin. The DSA primarily imposes risk-management, transparency and procedural obligations, unlike the DMA which regulates companies’ business models. OpenAI will need to submit risk assessments and other documentation by January, on top of its existing obligations under the AI Act.

The DSA also includes the possibility of fines up to 6% of annual revenue for non-compliance. That said, Brussels is unlikely to rush to fine the company given the pressure it is under from the Trump Administration; OpenAI President Greg Brockman and his wife were the single largest individual donors to Trump’s MAGA Inc super PAC in 2025. With the exception of Meta and X, the commission is mainly focusing DSA enforcement on Chinese platforms, to balance the more US-heavy DMA.

The long-term stakes hinge on how broadly the commission is able to enforce the DSA’s most substantive articles. Articles 34 and 35, for example, would require OpenAI to assess and mitigate

systemic risks resulting from the use of ChatGPT, including in relation to media pluralism, civic discourse and electoral processes, as well as “physical and mental well-being.” This could give Brussels leverage to push OpenAI to do more to address some of the harmful side-effects of AI, such as on publishers and news media.

However, it is unclear to what extent these articles will apply to ChatGPT as a whole, rather than just its search engine capabilities. The commission will likely push for a wide application, consistent with its description of ChatGPT as a “hybrid” service. OpenAI will likely take the opposite view. Increased scrutiny from Brussels could provide Washington with more ammunition to accuse EU officials of interfering with US companies and free speech.

The DMA poses the greater long-term risk to AI companies. The DMA was also not designed to tackle AI, which is not listed as a “core platform service” under the law. Brussels has nonetheless been deploying competition law in the AI market. In June, the commission ordered Meta to reinstate third-party AI assistants’ access to the WhatsApp for Business application programming interface (API). Later this year, Brussels will very likely designate Microsoft Azure and Amazon Web Services (AWS) as core platform services under the DMA, following a preliminary decision in late June.

For now, Brussels is unlikely to propose amending the DMA to formally bring AI chatbots into scope. The official evaluation of the law, released in April, concluded that it remains fit for purpose and future-proof. Commission lawyers may be able to argue AI chatbots fall under the category of “virtual assistant”—which was designed for device-based assistants such as Siri and Alexa, not those powered by Large Language Models.

Watch for designation of Azure and AWS under the DMA this fall, and signals on whether AI chatbots could follow. Moves towards formally bringing OpenAI or Anthropic into scope of the DMA are possible but less likely. A new regulatory proposal expected by the end of the year, the Digital Fairness Act, will take aim at harmful or addictive design on digital services, including chatbots.

Throughout this period, the EU will be under renewed pressure from Washington, likely in the form of a Section 301 trade investigation (see: White House digital probe will target EU exports not firms , 27 August 2026). The evolution of this investigation and transatlantic relations more broadly will influence how strongly Brussels cracks down on AI companies.

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